

25STCV18279 25STCV18279

County: los-angeles

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Case Number: 25STCV18279 Hearing Date: July 10, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV18279

MOHSEN

SAEEDY vs BLU MARINE FOUNDATION, A NONPROFIT CA CORPORATION, et al.

July

10, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT INTERNATIONAL SEAKEEPERS SOCIETY INC.'S MOTION TO COMPEL PLAINTIFF'S

FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE. MOTION THEREOF TO COMPEL PLAINTIFF'S
FURTHER

RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE.

RULING:

The Court grants both
Motions, as prayed, and will sign and file the Proposed Orders received on May
6, 2026.

Defendant to give notice.

I.

BACKGROUND

The
Court incorporates by reference the Background section of the Minutes entered
on July 10, 2026.

On May 6, 2026,
INTERNATIONAL SEAKEEPERS SOCIETY INC. (Defendant) filed the Motion to Compel Plaintiff's
Further Responses to Special Interrogatories, Set One; and the Motion to Compel
Plaintiff's Further Responses to Requests for Production of Documents, Set One.

MOHSEN SAEEDY (Plaintiff)

opposes, arguing that all responses with supplements are code-compliant, when
one considers the requests as actually worded. Plaintiff's counsel also
declares that meeting and conferring resulted in an agreement for Defendant to
not file the Motions after the service of supplemental responses and further
document production.

II.

LEGAL STANDARD

Where respondents object
or respond inadequately to discovery requests, a motion lies to compel further
responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court
(2000) 22 Cal.4th 245, 255; Code Civ. Proc., §§ 2030.300, subd. (a) [motion to
compel further responses lies "[o]n receipt of a response to
interrogatories...."]; and 2031.310, subd. (a) [motion to compel further
responses lies "[o]n receipt of a response to an inspection demand...."].) A
propounding party's remedy when it deems objections in discovery responses to
be without merit is to move for an order compelling further responses. (Catalina

Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.)

If interrogatory

responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181, 1190.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

III.

ANALYSIS

First, Defendant requests

the Court grant the Motion to Compel Further Responses to Special Interrogatories (Set One) Nos. 4-8, 12-14, 17, 27-29, 31-36, 47, 48. Defendant reasons that responses are not code-compliant, including because some fail to address the whole request and state that further information will be developed through discovery.

Second, Defendant seeks

further responses to the Request for Production of Documents, Set One, and the production of all relevant documents and a privilege log. Defendant describes the responses as incomplete, inadequate, and evasive, with meritless objections. Further, Defendant criticizes the responses for failing to include a privilege log and to be followed up by document production as agreed. Defendant also

requests \$4,590.00 in sanctions against Plaintiff and counsel.

Plaintiff responds that

the interrogatory and document responses, followed by supplements, are code-complaint, considering the requests as actually worded, but Defendant nevertheless filed the Motions and did not take the Motions off calendar as agreed. (Opposition, 14th unnumbered page (Alfred J. Verdi Declaration), ¶¶ 5-12.)

Interrogatory responses

must be (1) the information sought, (2) an exercise of a valid option to produce writings, or (3) an objection. (Hernandez v. Superior Court (2003) 112 Cal.App.4th 285, 293.) An interrogatory response must be as complete and straightforward as reasonably available information permits. (Code Civ. Proc., § 2030.220.) A response must “represent the interrogated party's present best and complete answer.” (Fuss v. Superior Court (1969) 273 Cal.App.2d 807, 816.) If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 406; Regency Health Services, Inc. v. Superior Court (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in Guzman v. General Motors Corp. (1984) 154 Cal.App.3d 438, 444.)

A document response must

consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed “in whole or in part,” and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) Compliance includes all documents or things in the demanded category that are in the “possession, custody, or control” of the responding party, such as from other corporations. (Roche v. Hyde (2020) 51 Cal.App.5th 757, 813 [quoting Code Civ. Proc., § 2031.220].) With regard to document requests, a response expressing an

inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent's possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.) "Even where a party deems a demand to be objectionable, he [she, or it] still must identify those items which fall into the category of item in the demand to which an objection is being made." (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901, fn.3.)

A motion to compel compliance as agreed with a request for production of documents is based upon a showing that the respondents failed "to permit an inspection 'in accordance with that party's statement of compliance.'" (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903. See also Code Civ. Proc., § 2031.320, subd. (a).) "If the party fails to make a production in accordance with its statement of compliance, the opposing party may file another motion to compel seeking compliance." (Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1033 [citing Code Civ. Proc., § 2031.320].)

Here, the Court finds that the Separate Statements reveal responses that are not fully code compliant, which requires stating specified types of responses, according to law described above. As examples, some answers are incomplete and some promise supplements in the future, without fully stating efforts made to obtain the requested information. Also, Defendant asserts that Plaintiff produced no documents.

IV.

CONCLUSION

Therefore, the Court grants both Motions, as prayed.